BRENDAN NGEHSI NEWANFORBI

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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PETITIONER'S NOTICE OF MOTION AND MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

TO RESPONDENTS CALIFORNIA HIGHWAY PATROL AND G. SERRATO, AND TO COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on January 8, 2027, at 9:00 a.m., in Department 25 of the Superior Court of California, County of Alameda, René C. Davidson Courthouse, 1225 Fallon Street, Oakland, California, or at another time set by the Court, Petitioner will move for judgment on the surviving First Cause of Action and for a peremptory writ of mandate under Code of Civil Procedure section 1085 and Penal Code section 679.10. Reservation number: 958052306492.

The motion asks the Court to choose one of two forms of relief:

1. If the Court finds that Petitioner was a victim of qualifying criminal activity (false imprisonment or unlawful criminal restraint) and has been, is, or is likely to be helpful within the meaning of Penal Code section 679.10, subdivision (g)(1), and that no other lawful disposition remains, a writ directing Respondents' authorized certifying official to complete, sign, and deliver Form I-918 Supplement B on the April 9, 2026 request; or

2. If the Court finds legal error or a material abuse of discretion in Captain G. Serrato's April 20, 2026 denial, but does not find that only one lawful result remains, a writ vacating that denial and remanding for a new determination under the correct statutory criteria and the Court's findings, as specified in the proposed order.

Petitioner does not request damages, immigration status, or relief on dismissed causes of action. A parallel federal civil action, Newanforbi v. Serrato, No. 4:26-cv-05953-ASK (N.D. Cal.), is pending; Petitioner does not ask this Court to give that case preclusive effect.

The motion is based on this notice and memorandum, the verified petition and previously filed Exhibits 1--7, Respondents' Verified Answer dated October 12, 2026, the August 29, 2026 demurrer order, the concurrently submitted declaration, the Request for Judicial Notice, the Notice of Lodging of the administrative and produced record, the original recording upon proper lodging and admission, and such other admissible evidence and argument as the Court receives. The proposed order is lodged separately under California Rules of Court, rule 3.1113(m).

DATED: _____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona

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BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **MEMORANDUM OF POINTS AND AUTHORITIES** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

MEMORANDUM OF POINTS AND AUTHORITIES

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I. INTRODUCTION

This motion concerns one surviving claim: whether CHP's April 20, 2026 refusal to certify Form I-918 Supplement B was a lawful exercise of Penal Code section 679.10. It is not a claim that every unconstitutional stop automatically qualifies, and it is not a request that the Court decide immigration status.

On April 9, 2026, Petitioner submitted the form and supporting materials, including a petitioner-prepared transcript of the November 1, 2024 dashcam recording, asking CHP to certify helpfulness concerning unlawful restraint and false imprisonment. (Answer ¶¶ 2, 58; Pet., Exs. 2--3, 5.) Captain Serrato's April 20 letter rejected qualifying and substantially similar criminal activity. (Pet., Ex. 1; Answer ¶¶ 3, 60.) It did not identify lack of helpfulness. (Ibid.)

The First Cause of Action survived demurrer. The Court held that if, at the merits stage, it credited the allegations of absent odor, absent impairment signs, and false reporting, it could find probable cause lacking, which could support an abuse-of-discretion finding on the certification refusal. (Order Sustaining Demurrer in Part, Aug. 29, 2026, p. 4.) That is a pleading-stage pathway, not a finding. This motion asks the Court to decide that actual question, or to send the request back under the correct law.

Two record conflicts are concrete. First, CHP Form 202 states that Petitioner "chose

not to perform" the walk-and-turn "and related it was difficult," and then incorporates "poor performance on the FST's" into the arrest analysis. (CHP Form 202, Case RJ68845, narrative p. 3, produced as AGO 000031 [PINPOINT UNCONFIRMED on the Bates overlay].) The submitted transcript records Petitioner saying, "I mean I think we can do that," and Officer Melano declining the test because the freeway shoulder was uneven. (Pet., Ex. 5, printed p. 9, 01:10:14--01:10:30.) The native recording, not the litigant's characterization, should control. Second, the transcript places an advised PAS refusal immediately before handcuffing (id. at 01:10:54--01:11:33), while the Answer describes arrest shortly after a "chemical alcohol test" refusal (Answer ¶ 38). Those are different tests. Vehicle Code section 23612, subdivisions (h) and (i), make PAS optional.

CHP is a certifying entity; Captain Serrato is a certifying official. (Answer ¶¶ 13--14.) The lead request is that the Court correct the legal standard and, if the predicates and a single lawful result are found, compel certification. The ordinary fallback is vacatur and remand with instructions. Petitioner does not ask the Court to revive the dismissed reason-giving or standalone-helpfulness counts.

II. THE REQUEST, THE DENIAL, AND CHP'S VERIFIED ADMISSIONS

CHP admits that in the early morning of November 1, 2024, Petitioner was parked on the shoulder of Interstate 580 East in Livermore; that the vehicle was not moving when the officers observed it; that Officers Santiago Meza-Gonzales and Jose Melano approached for a welfare check; and that much of the incident was recorded by a CHP dashcam. (Answer ¶¶ 34--35.) CHP denies that the parking was lawful. (Answer ¶ 34.)

CHP admits the officers expressed concern about a cup of liquid and then identified that liquid as urine. (Answer ¶ 36.) CHP admits they located an empty can of Mike's Hard Lemonade, stated aloud that the beverage constituted alcohol, and that Petitioner denied

consuming it; the arrest report checked the box for an alcoholic beverage. (Answer ¶ 47.) CHP denies that the cup was the "sole articulated basis" for suspicion. (Answer ¶ 36.)

CHP admits the officers did not tell Petitioner they smelled alcohol from him or the vehicle, and did not tell him his speech was slurred, hesitant, or impaired. (Answer ¶¶ 37, 44--45.) The same Answer admits that the arrest report claims a "distinct odor" from the vehicle and from Petitioner's breath and person, and characterizes his speech as "[s]lurred" and the subject as "very confused and disoriented." (Answer ¶¶ 44--46.) CHP admits Petitioner correctly identified Livermore, read highway signs, spelled his last name, and said he had come from Oakland toward Stockton. (Answer ¶¶ 37, 45--46.) CHP denies that Petitioner exhibited no objective signs of impairment and denies that he adequately performed the Modified Romberg test. (Answer ¶ 37.)

CHP admits Officer Meza-Gonzalez transported Petitioner in handcuffs to the Dublin Area office; that a blood draw occurred at about 2:38 a.m.; that Petitioner was then held at Santa Rita Jail from November 1 through November 5, 2024; that CHP issued a "Dublin CHP -- 01991 -- Detention Certificate" on November 5 quoting Penal Code sections 849, 849.5, and 851.6; and that no criminal charges have been filed for driving under the influence that night. (Answer ¶¶ 39--42, 49.) CHP denies that the arrest report was fabricated and denies that detention was based solely on refusal of a voluntary test. (Answer ¶¶ 38, 41.)

On April 9, 2026, Petitioner emailed the certification request and exhibits. (Answer ¶¶ 2, 58.) Lieutenant Paul acknowledged receipt on April 10 as "under review." (Answer ¶¶ 15, 59.) On April 20, Captain Serrato issued a letter on Dublin Area letterhead, File No. 390.18437.17620.26-050. The operative paragraph, as quoted in the petition and in this Court's August 29 order, states that a "thorough review of this incident was conducted," that the incident "does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code, nor does it meet the standards of the Immigration and

Nationality Act Section 101(a)(15)(U)(iii)," and that the review "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." (Pet. ¶ 60; Pet., Ex. 1; Order, Aug. 29, 2026, p. 2.) CHP admits the letter speaks for itself and that the denial issued before the 30-day processing mark in section 679.10, subdivision (j). (Answer ¶¶ 60--61, 71.) Petitioner does not claim a missed deadline.

III. THE GOVERNING DUTY AND THE STANDARD OF REVIEW

California lists false imprisonment and unlawful criminal restraint among qualifying activities. (Pen. Code, § 679.10, subds. (c)(18)--(19).) A "qualifying crime" also includes an offense whose nature and elements are substantially similar. (Id., subd. (d); see 8 U.S.C. § 1101(a)(15)(U)(iii); 8 C.F.R. § 214.14(a)(9).) Upon request, a certifying official "shall certify victim helpfulness on the Form I-918 Supplement B certification, when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity." (Pen. Code, § 679.10, subd. (g)(1).) Federal regulations treat "investigation or prosecution" as including detection or investigation. (8 C.F.R. § 214.14(a)(5).)

Subdivision (h) creates a rebuttable helpfulness presumption if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. Subdivision (k)(1) states that a current investigation, charges, apprehension, closing of a case, and a prosecution or conviction are not required. A certifying entity shall not refuse certification because of the victim's criminal history or because of cooperation or refusal to cooperate in a separate case. (Id., subd. (k)(3)(A), (H).) These are limits on how the remaining judgment is exercised. They are not a substitute for proof of qualifying victimhood, and they are not a revival of the dismissed third cause of action.

Traditional mandate issues to compel performance of an act the law specially enjoins,

on the verified petition of a party beneficially interested, when there is no plain, speedy, and adequate legal remedy. (Code Civ. Proc., §§ 1085, 1086.) "Mandamus will not lie to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular manner. Mandamus may issue, however, to compel an official both to exercise his discretion (if he is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442.) Where a statute leaves room for discretion, the challenger must show the official "acted arbitrarily, beyond the bounds of reason or in derogation of the applicable legal standards." (California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824, 827.) "Where only one choice can be a reasonable exercise of discretion, a court may compel an official to make that choice." (Ibid.) Mandate will not compel a particular method of exercising discretion when a lawful range remains. (Saleeby v. State Bar (1985) 39 Cal.3d 547, 561--562.)

CHP's certification decision is informal administrative action, not a quasi-legislative rulemaking. Ministerial and informal actions "do not merit such deference" as quasi-legislative decisions. (Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 576.) Form 202, the authenticated recording, and the verified admissions are incident-record facts about the encounter the April 20 letter classified. Petitioner offers them for that review, not as a collateral DUI prosecution and not as a basis to infer Captain Serrato's private thoughts from later-dated withheld memoranda. If no triable issue remains, the Court may decide the petition by noticed motion. (Code Civ. Proc., § 1094.) If a return raises an essential factual question, the Court may order that question tried. (Id., § 1090.)

Petitioner has a direct personal interest in the certification decision. No other proceeding supplies the Form I-918 Supplement B that section 679.10 assigns to a certifying official.

IV. THE APRIL 20 DETERMINATION APPLIED AN INCORRECT LEGAL STANDARD

The denial's only stated ground is that the November 1, 2024 incident was not qualifying or substantially similar activity under section 679.10 and INA section 101(a)(15)(U)(iii). (Pet., Ex. 1.) That is a classification decision. It is reviewable for whether the official applied the statute the Legislature wrote.

Three legal errors appear on the face of that classification, even before the Court resolves every disputed roadside observation.

First, section 679.10, subdivision (g)(1), does not authorize a certifying official to treat "qualifying criminal activity" as a free-floating impression of the encounter. The official must decide whether the requester was a victim of an activity listed in subdivision (c) or substantially similar under subdivision (d). False imprisonment is "the unlawful violation of the personal liberty of another." (Pen. Code, § 236.) Petitioner was handcuffed, transported, and confined for days. (Answer ¶¶ 39--41, 49.) Those facts establish intentional restraint. The remaining statutory question is lawful authority, not whether the encounter was labeled a DUI investigation.

Second, subdivision (k)(1) forbids treating the absence of charges, prosecution, or an open investigation as a reason the incident "does not meet the standard." CHP admits no DUI charges were filed and that a detention certificate issued. (Answer ¶¶ 42, 49.) The letter does not mention those facts. It also does not mention helpfulness. If the official never reached helpfulness because he treated the incident as categorically non-criminal, a legal error in that first step infects the rest of the decision. This Court has already held that the letter's brevity is not an independent Count 2 violation. (Order, Aug. 29, 2026, p. 4.) The point here is different: the stated ground must still be a correct application of subdivisions (c), (d), and (k).

Third, the letter invokes the Immigration and Nationality Act as a parallel reason for denial. USCIS, not CHP, adjudicates the visa petition. CHP's statutory job under section 679.10 is the state certification of victimhood and helpfulness. Weighing whether USCIS would approve the petition is a reason subdivision (k)(3)(D) tells a certifying entity not to use. Petitioner does not claim to know Captain Serrato's private thoughts. He asks the Court to hold the agency to the statute the letter itself cites.

Respondents will say certification is discretionary. The federal regulation describes a certifying agency as an authority with responsibility for investigation or prosecution of qualifying crime (8 C.F.R. § 214.14(a)(2)), and some federal decisions treat the federal certification decision as discretionary. California nonetheless used "shall certify … when" the two predicates exist. (Pen. Code, § 679.10, subd. (g)(1).) Discretion, if any remains, is discretion to decide those predicates under the correct definitions--not discretion to skip them. That is the Common Cause line: compel exercise under a proper interpretation; do not pick among lawful outcomes unless only one remains.

V. THE DENIAL CANNOT REST ON A MATERIAL MISSTATEMENT OF THE WALK-AND-TURN

If the Court reaches the factual predicate for the "no qualifying activity" conclusion, the most specific documentary conflict is the walk-and-turn.

CHP Form 202 states: "Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." The same narrative later lists "Newanforbi's poor performance on the FST's" among the grounds for the opinion that he drove while under the influence, "a violation of California Vehicle Code 23152(a) per 40300.5 VC." (CHP Form 202, Case RJ68845, narrative pp. 3--4, produced as AGO 000031--000032 [PINPOINT UNCONFIRMED on the

Bates overlay].)

The transcript submitted with the April 9 request records a different exchange. Officer Meza-Gonzalez asked whether Petitioner wanted to "walk in a straight line." Petitioner said, "I mean I think we can do that. I mean…" Officer Melano said the ground was "kind of sketch," "on the side of the freeway and it's like uneven ground. I wouldn't do that one." Officer Meza-Gonzalez answered, "Alright then." (Pet., Ex. 5, printed p. 9, 01:10:14--01:10:30; Newanforbi Decl. ¶ 5.) That is not a relabeling of the earlier one-leg-stand discussion. (Id. at 01:09:14--01:10:12.)

If the native recording corroborates the transcript, the report materially misattributes who declined the test and why. A certification decision that the incident involved no unlawful restraint cannot rest on an arrest rationale that counts an officer-cancelled test as the subject's failure. The Court should compare the recording, the report, and the testimony. One discrepancy does not automatically prove a crime. It does mean the no-qualifying-activity conclusion must survive without that sentence.

The verified admissions narrow what else can carry that conclusion without further findings. The car was not moving when observed. (Answer ¶ 34.) The cup the officers first treated as suspect was identified as urine. (Answer ¶ 36.) They did not announce an odor or slurred speech, though the report later claims both. (Answer ¶¶ 37, 44--45.) Petitioner identified Livermore and read signs. (Answer ¶¶ 37, 46.) He was then handcuffed, moved, and jailed for four days, and no DUI complaint was filed. (Answer ¶¶ 39--42, 49.) Those admissions do not establish every element of false imprisonment. They do prevent treating the April 20 letter as if it confronted an unbroken, internally consistent DUI file.

Petitioner does not ask the Court to treat the remaining Form 202 indicators as disappearing or as tests he "passed." The report records HGN clues, a Modified Romberg

estimate of 43 seconds with eyelid flutters, and a one-leg stand that it also describes as chosen-not-to-perform. (CHP Form 202, narrative p. 3 [PINPOINT UNCONFIRMED on the Bates overlay].) The Answer admits an empty can of Mike's Hard Lemonade and denies that Petitioner exhibited no objective signs of impairment. (Answer ¶¶ 37, 47.) The later blood result is 0.073 ± 0.004 grams percent, not zero. (AGO 000034 [PINPOINT UNCONFIRMED on the Bates overlay].) Those facts remain for the Court. The walk-and-turn sentence is the specific attribution conflict. It cannot be folded into "poor performance on the FST's" if the recording shows the officers cancelled the test.

Petitioner does not ask the Court to infer Serrato's deliberations from the privilege log. The October 23 production and the log establish what was produced and what was withheld, including review memoranda dated May 9, 2026--after the denial. (Newanforbi Decl. ¶¶ 10--12.) Relief is sought on the facts the Court finds, not on the letter's length.

VI. QUALIFYING ACTIVITY IS UNLAWFUL PERSONAL RESTRAINT ; LAWFUL AUTHORITY REMAINS THE ISSUE

False imprisonment is the unlawful violation of another's personal liberty. (Pen. Code, § 236.) Penal Code section 146, subdivision (a), makes it a misdemeanor for a public officer, under color of legal authority, to arrest or detain a person against his will without regular process or other lawful authority. To the extent CHP evaluates section 146(a) under section 679.10, subdivision (d), the elements are arrest or detention against the person's will, by an officer, without lawful authority. Petitioner was handcuffed, transported, and confined. (Answer ¶¶ 38--41, 49; CHP Form 202, narrative p. 5; Newanforbi Decl. ¶¶ 2, 6.) The criminal-activity theory does not depend on the officers being charged. (Pen. Code, § 679.10, subd. (k)(1).)

The recording, once authenticated, bears on authority at each stage. The officers

approached a stationary vehicle as a welfare inquiry. (Answer ¶ 35; Pet., Ex. 5, 00:55:25--00:56:49.) Officer Melano directed Petitioner to open the window at 00:56:40; the transcript's stage direction places the passenger door opening three seconds later. (Pet., Ex. 5, 00:56:40--00:56:43.) Petitioner was then directed out, tested, handcuffed, and taken into custody. (Id. at 00:59:12--01:11:33.) The initial door opening is not offered as an independently enumerated U-visa offense. It is part of the progression from a welfare contact to compulsory restraint.

Vehicle Code section 40300.5 permits a warrantless DUI arrest, in addition to Penal Code section 836, when the officer has reasonable cause to believe the person had been driving under the influence and one of the listed circumstances exists. Placement on a freeway shoulder does not, by those words alone, establish that the person was "observed in or about a vehicle that is obstructing a roadway." (Veh. Code, § 40300.5, subd. (b).) The agency must identify the facts that supplied lawful authority at the time of arrest. A later warrant at 2:34 a.m. and a blood draw at 2:38 a.m. do not replace that inquiry. The produced laboratory result reports 0.073 ± 0.004 grams percent ethanol at that later collection. (AGO 000034 [PINPOINT UNCONFIRMED on the Bates overlay]; evidence-map visual check.) That figure is not zero. It does not, without more foundation, establish a concentration at the time of driving, and it does not decide impairment under Vehicle Code section 23152, subdivision (a).

The detention certificate and the absence of a filed complaint are official disposition facts. (Answer ¶¶ 42, 49; Pen. Code, §§ 849.5, 851.6.) They are not a judicial finding that the officers lacked probable cause. Petitioner does not ask the Court to treat them as one.

This Court already identified the merits question: if the factfinder credits the allegations that there was no odor, no impairment in the tests Petitioner performed, and false reporting, probable cause could be found lacking, which could support an abuse-of-discretion finding on the certification refusal. (Order, Aug. 29, 2026, p. 4.) The August 29 order also

recited contrary facts from the petition's own transcript--an empty can, roadside testing, a PAS refusal--and cited People v. Thompson, People v. Wolterman, and Espinoza v. Shiomoto for the proposition that the attached materials tend to suggest probable cause. (Id. at p. 3.) Those citations framed a demurrer. They do not relieve the Court of deciding, on competent evidence, whether the stated grounds for this restraint were true and complete. A legitimate welfare inquiry, or even a lawful initial DUI investigation, is not categorically inconsistent with later unlawful confinement. The Court should decide the question on the chronology actually proved.

VII. A VOLUNTARY PAS REFUSAL IS NOT A SUBSTITUTE FOR OBJECTIVE GROUNDS, AND IS NOT UNHELPFULNESS

The transcript records Officer Meza-Gonzalez advising that the roadside preliminary alcohol screening test was "not required," Petitioner's refusal at 01:11:15, and the immediate direction to turn around and place his hands behind his back. (Pet., Ex. 5, 01:10:33--01:11:33; Newanforbi Decl. ¶ 6.) Vehicle Code section 23612, subdivision (h), classifies PAS as a field sobriety test and a further investigative tool. Subdivision (i) requires the officer to advise of the right to refuse.

People v. Jackson (2010) 189 Cal.App.4th 1461 held it was error to admit an advised PAS refusal as consciousness-of-guilt evidence at a DUI trial, because "it makes little sense to grant a right of refusal yet allow the prosecution to admit evidence of that refusal to establish consciousness of guilt." (Id. at pp. 1466--1469.) The error was harmless on that record. (Id. at p. 1470.) Jackson does not itself decide every prearrest reasonable-cause question. It does defeat treating the exercise of that statutory choice as a stand-in for the objective facts the officer already had--or did not have--before the refusal.

The Answer describes arrest "shortly after" refusal of a "chemical alcohol test."

(Answer ¶ 38.) The transcript begins the chemical-test discussion at 01:15:54, after handcuffing. (Pet., Ex. 5.) The Court should require Respondents to say which refusal they mean. Declining a voluntary PAS during a DUI investigation of Petitioner is not, by itself, a refusal to aid investigation of the alleged unlawful restraint, and it is not a lawful reason to deny certification under section 679.10, subdivision (k)(3)(H).

VIII. HELPFULNESS IS SUPPORTED IF QUALIFYING VICTIMHOOD IS FOUND

This section is not a restated third cause of action. The Court held the presumption immaterial while qualification was absent. (Order, Aug. 29, 2026, p. 4.) If the Court finds qualifying victimhood, helpfulness still must be addressed before direct certification, and it should be addressed on any remand.

Petitioner complained to CHP and to POST, supplied a timeline and a transcript, identified the officers, and attached incident records to the April 9 request. He remains willing to supply truthful information and reasonable assistance concerning the alleged restraint. (Newanforbi Decl. ¶¶ 7--9; Pet., Exs. 2--3; Answer ¶¶ 49, 54, 58.) CHP "deny[s] that any ‘investigating entity' ever requested information from Petitioner." (Answer ¶ 57.) The statutory presumption applies if the victim has not refused or failed to provide reasonably requested assistance. (Pen. Code, § 679.10, subd. (h).) A request that was never made cannot be a reasonable request that was refused.

Helpfulness concerns detection or investigation of the qualifying activity alleged against the officers. (Id., subd. (g)(1); 8 C.F.R. § 214.14(a)(5).) These facts do not create qualifying victimhood. They independently support helpfulness once victimhood is found.

IX. THE RELATED FEDERAL SCREENING ORDER IS DISCLOSED AND LIMITED

Petitioner has a related federal action, Newanforbi v. Serrato, No. 4:26-cv-05953-ASK (N.D. Cal.). On June 29, 2026, the magistrate judge granted in forma pauperis status and screened the complaint under 28 U.S.C. § 1915. The order states: "Accepting Mr. Newanforbi's alleged facts as true, his complaint supports the plausible inferences that CHP officers falsely imprisoned him in November 2024 based on fabricated evidence. It also supports the plausible inference that, despite his status as a victim of the qualifying crime of false imprisonment, Defendant Serrato retaliated against him by wrongfully denying his certification request." (Dkt. 5, p. 4.) The court concluded the allegations were sufficient under section 1915(e)(2) and directed issuance of summons. (Id. at p. 5.)

Petitioner cites that order only as a candid disclosure of the parallel case and as persuasive support that the pleaded theory is legally cognizable. He does not ask this Court to treat the screening order as a finding that fabrication, false imprisonment, or retaliation occurred, or as issue preclusion, claim preclusion, or a federal command to certify. Count 1 will be decided on the record and findings made here. Judicial notice is sought of the order's existence, filing date, text, and screening disposition, not of the truth of the alleged facts. (Evid. Code, §§ 452(d), 453.)

X. THE COURT SHOULD CERTIFY, OR VACATE AND REMAND WITH INSTRUCTIONS

If the Court finds qualifying victimhood and helpfulness, and finds that no other lawful disposition remains, it may direct execution and delivery of Form I-918 Supplement B. (Pen. Code, § 679.10, subd. (g)(1); California Correctional Supervisors Organization, supra, 96 Cal.App.4th at p. 827.) Direct certification is sought only on those findings.

If the Court finds legal error or a material abuse of discretion in the April 20 classification, but does not find that only one result is lawful, it should vacate the denial and remand to an authorized certifying official for a new determination. (Common Cause, supra, 49 Cal.3d at p. 442; Saleeby, supra, 39 Cal.3d at pp. 561--562.) The new determination should apply subdivisions (c), (d), (g), (h), and (k) of section 679.10; should not require charges, prosecution, or an open investigation; should not treat the PAS refusal as unhelpfulness on the alleged restraint; and should not perpetuate a walk-and-turn account the Court finds the recording disproves. If certification is again denied, the official should state the actual statutory ground.

If genuinely material factual disputes remain--the walk-and-turn exchange, the category and timing of the refusal that preceded handcuffing, and the contemporaneous grounds for custody--the Court should set the narrowest evidentiary proceeding needed to decide Count 1. (Code Civ. Proc., §§ 1090, 1094.) Petitioner asks for no relief on dismissed claims and no adjudication of immigration status.

XI. CONCLUSION

Petitioner respectfully requests judgment on Count 1. The Court should either (1) direct Respondents' authorized certifying official to complete and deliver Form I-918 Supplement B, if the statutory predicates are found and no other lawful outcome remains, or (2) vacate the April 20, 2026 denial and remand for a new determination under the correct legal standards and the Court's findings. If essential facts cannot be resolved on this record, Petitioner requests a focused evidentiary hearing limited to those facts.

DATED: _____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona

BRENDAN NGEHSI NEWANFORBI

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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PEREMPTORY WRIT OF MANDATE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

DECLARATION OF BRENDAN NGEHSI NEWANFORBI

I, Brendan Ngehsi Newanforbi, declare:

1. I am the petitioner, identified in the caption as Brendan Ngehsi Newanforbi. The following statements are based on my personal observations, records I prepared, or documents I received. I could competently testify to them. I do not purport to know CHP's undisclosed internal deliberations.

2. On November 1, 2024, I was in a rented Tesla Model Y parked on the shoulder of Interstate 580 eastbound near Isabel Avenue in Livermore. I had stopped because I was tired and fell asleep. I was not driving when the officers approached. I remember being awakened

during their contact and answering questions. I did not voluntarily agree to arrest or imprisonment.

3. I prepared the timestamped transcription submitted with my April 9, 2026 certification materials and appended as Exhibit 5 to my verified petition, by listening to the incident recording and transcribing what I heard. Bracketed stage directions are my descriptions, not statements by the officers. The original recording is more authoritative than my transcription. I ask that the recording be used to verify quotations and events. I believe Officer Melano's first name is Jose, not "Joselyn"; that name in the transcript's stage direction at 00:56:43 is my error.

4. I heard Officer Melano instruct that I open the window. I recall the passenger door opening before I had lowered that window. I answered the officers' questions, identified my location as Livermore, and read highway signs they asked about. I participated in certain roadside exercises. I do not offer any expert interpretation of the HGN or time-estimation tests.

5. The officers proposed a walk-and-turn test. My recollection is that I expressed willingness to try it. Officer Melano then raised concern about conducting that test on the uneven freeway shoulder, and the officers did not administer it. I distinguish this from an earlier discussion of the one-leg stand. The proposed walk-and-turn exchange is transcribed at approximately 01:10:14--01:10:30. I ask that the native recording control the exact wording.

6. I was told that the roadside preliminary alcohol screening (PAS) test was not required. I declined that voluntary test. The officers then ordered me to turn around, applied handcuffs, transported me, and took me into custody. My refusal of the roadside PAS was distinct from later requests for a chemical test after arrest. I did not consent to the later blood draw.

7. I reported my concerns about the officers' conduct to CHP and to California POST and provided incident-specific information and the transcript. I remain willing to supply truthful information and reasonable assistance concerning the alleged unlawful restraint and any investigation of it.

8. To my knowledge I have not refused or failed to provide information or assistance reasonably requested from me concerning an investigation of the alleged wrongful restraint. This paragraph is confined to the alleged qualifying activity against me, not to what I agreed or declined to do during CHP's investigation of me for suspected DUI.

9. On April 9, 2026, I sent CHP the request for Form I-918 Supplement B certification, with supporting records. I later received Captain Serrato's April 20, 2026 denial. True copies of the request and signed denial were included as exhibits to the verified petition. I cannot say from personal knowledge which documents were privately reviewed before CHP's decision.

10. On October 23, 2026, I received the Department of Justice production in this lawsuit. Attached Exhibit A is the October 23 delivery email and its service declaration. Exhibit B is the produced CHP Form 202, DS-367, and search-warrant / laboratory packet identified as AGO 000029--000053. Exhibit C is the three-page privilege log. These are copies of materials received in the production, reproduced without substantive alteration.

11. Exhibit D is the September 8, 2026 court filing confirmation relating to my notice and declaration of lodging the dashcam evidence. I understand the record describes acceptance of the notice and declaration but rejection of a related proof of service. I do not claim that confirmation proves the original video was admitted or that all service issues have been resolved.

12. Exhibit E is a copy of Respondents' Verified Answer dated October 12, 2026. I refer to its numbered responses as Respondents' litigation positions and admissions, not as findings by a court.

13. Exhibit F is a copy of the June 29, 2026 order in Newanforbi v. Serrato, No. 4:26-cv-05953-ASK (N.D. Cal.), Dkt. 5. I offer it as a court record of a parallel case, not as a finding that the alleged facts are true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2026, at _____, California.

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona

BRENDAN NGEHSI NEWANFORBI

1455 Cat Tail Drive, Stockton, CA 95204

Telephone: (209) 801-4442 Email: bnn.cdl@gmail.com

Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **[PROPOSED] ORDER ON MOTION FOR PEREMPTORY WRIT OF MANDATE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

[PROPOSED] ORDER ON MOTION FOR PEREMPTORY WRIT OF MANDATE

The motion of Petitioner Brendan Ngehsi Newanforbi for a peremptory writ of mandate on the surviving First Cause of Action came on for hearing on January 8, 2027, in Department 25, the Honorable Jenna M. Whitman presiding. The Court has considered the papers, the admitted evidence, and the argument.

THE COURT FINDS AND ORDERS AS FOLLOWS. The clerk shall check one alternative.

Alternative A -- Direct certification

1. Petitioner requested Form I-918 Supplement B certification from the California Highway Patrol on April 9, 2026. On April 20, 2026, CHP, acting through Captain G. Serrato, denied the request on the ground that the November 1, 2024 incident did not involve qualifying or substantially similar criminal activity.

2. The Court finds that Petitioner was a victim of qualifying criminal activity within the meaning of Penal Code section 679.10, subdivisions (c)(18)--(19) or (d), namely false imprisonment or unlawful criminal restraint, and that Petitioner has been, is, or is likely to be helpful to the detection or investigation of that activity within the meaning of subdivision (g)(1). The Court further finds that, on the facts found, no other lawful disposition of the April 9, 2026 request remains.

3. The April 20, 2026 denial is vacated. A peremptory writ shall issue commanding CHP, acting through an authorized certifying official, to complete, sign, and deliver to Petitioner Form I-918 Supplement B on the April 9, 2026 request within 20 days after service of the writ, without requiring charges, prosecution, or an open investigation, and to file a verified return within 30 days after service of the writ.

Alternative B -- Vacatur and remand with instructions

1. Petitioner requested Form I-918 Supplement B certification from the California Highway Patrol on April 9, 2026. On April 20, 2026, CHP, acting through Captain G. Serrato, denied the request on the ground that the November 1, 2024 incident did not involve qualifying or substantially similar criminal activity.

2. The Court finds that the April 20, 2026 determination applied an incorrect legal

standard to Penal Code section 679.10, subdivisions (c), (d), (g), and (k), and/or rested on a material error in the assessment of qualifying criminal activity, including the conflict between CHP Form 202's statement that Petitioner chose not to perform the walk-and-turn because it was difficult and the credited contemporaneous recording of that exchange. The Court's additional findings are those stated on the record and incorporated here.

3. The April 20, 2026 denial is vacated. A peremptory writ shall issue commanding CHP, acting through an authorized certifying official, to make a new written determination on the April 9, 2026 request within 30 days after service of the writ, as follows:

a. Apply the definitions of qualifying criminal activity in Penal Code section 679.10, subdivisions (c) and (d), including false imprisonment and unlawful criminal restraint, to the record as determined by this Court;

b. Do not require a current investigation, charges, apprehension, prosecution, or conviction as a condition of certification (id., subd. (k)(1));

c. Do not deny the request because of Petitioner's criminal history or because of cooperation or refusal to cooperate in a separate investigation, including the optional PAS refusal during the DUI investigation of Petitioner (id., subd. (k)(3)(A), (H));

d. If qualifying victimhood is found, apply the helpfulness standard and presumption in subdivisions (g) and (h);

e. Do not perpetuate any walk-and-turn account this Court has found the recording disproves;

f. If certification is denied, state the actual statutory ground in writing.

4. Within 45 days after service of the writ, Respondents shall file and serve a verified return attaching the new determination or the completed certification, with any lawful redactions. The Court retains jurisdiction to determine compliance.

Alternative C -- Residual (only if neither A nor B can be entered)

Resolution of Count 1 requires determination of one or more material facts on competent evidence. An evidentiary hearing / trial-setting conference shall be held on _____ at _____ in Department 25, confined to the lawfulness of the November 1, 2024 compulsory restraint and the April 20, 2026 certification decision, including the walk-and-turn exchange, the contemporaneous grounds for custody, and helpfulness only if qualifying victimhood is established. This alternative does not reinstate any dismissed claim.

This order concerns only the First Cause of Action. It does not grant immigration status, award damages, or revive dismissed claims.

IT IS SO ORDERED.

Dated: _____

JUDGE OF THE SUPERIOR COURT

BRENDAN NGEHSI NEWANFORBI

1455 Cat Tail Drive, Stockton, CA 95204

Telephone: (209) 801-4442 Email: bnn.cdl@gmail.com

Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PROOF OF SERVICE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF _____

I am at least 18 years old and not a party to this action. My business or residence address is: _____.

On _____, I served the following documents in Newanforbi v. California Highway Patrol, No. 26CV191136:

1. Petitioner's Notice of Motion and Motion for Peremptory Writ of Mandate; Memorandum of Points and Authorities;

2. Declaration of Brendan Ngehsi Newanforbi and Exhibits A--F;

3. Request for Judicial Notice;

4. Notice of Lodging of Administrative and Produced Record;

5. [Proposed] Order on Motion for Peremptory Writ of Mandate.

Person served: Vanessa Ing, Deputy Attorney General, counsel for respondents CHP and G. Serrato. Address: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. E-mail shown on counsel's pleading: Vanessa.Ing@doj.ca.gov.

Method (complete only the actual method used):

[ ] ELECTRONIC SERVICE -- transmitted from _____ to _____ at _____, pursuant to applicable consent, without a transmission-failure notification.

[ ] U.S. MAIL -- enclosed in a sealed envelope, deposited in the United States mail at _____, California, with postage fully prepaid, addressed to counsel as stated above.

[ ] PERSONAL SERVICE -- delivered personally to _____ at _____ on _____ at _____.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, at _____, California.

Signature of server

Printed name: _____